

IN THE HIGH COURT OF JUDICATURE FOR RAJASTHAN AT JAIPUR
BENCH, JAIPUR

S.B. Cr. Misc. Bail Application No.14018/2015
(Mangilal Versus State of Rajasthan)

Date of Order :: 15th December, 2015

PRESENT

HON'BLE MR. JUSTICE MAHESH CHANDRA SHARMA

Dr. P.C. Jain, counsel for the petitioner(s)
Mr. N.S. Shekhawat, PP for the State

This bail application has been filed by the petitioner(s) under Section 438 CrPC.

Brief facts of the case are that the complainant submitted a complaint to the Magistrate concerned, which was sent for investigation to the concerned Police Station under Section 156(3) CrPC, whereupon an FIR No. 62/2015 was registered at Police Station, Ramgarh Pachwara, District Dausa for the offence under Sections 420, 467, 468, 471, 120B IPC and Section 125A of the Representation of the People Act, 1991. The petitioner(s) apprehending his/her/their arrest moved the anticipatory bail application before the Court below, but the same was dismissed. Hence, this bail application has been filed by the petitioner(s).

Learned counsel for the petitioner(s) has contended that the petitioner(s) is/are innocent and he/she/they has/have been falsely implicated in this matter. He has further contended that a false complaint had been submitted against the petitioner(s) and due to which he/she/they moved the bail application before the Court under Section 438 CrPC.

The main argument of the learned counsel for the petitioner(s) is that the Coordinate Bench of this Court had released the accused person(s) on anticipatory bail

in similar matter vide order dated 15th May, 2015 passed in S.B. Cr. Misc. Bail Application No. 5115/2015 (Smt. Rampati Meena Versus State of Rajasthan), which was subsequently challenged in the Hon'ble Supreme Court by the complainant by filing SLP. The said SLP had been dismissed by the Hon'ble Supreme Court vide order dated 7th August, 2015. The relevant part of the order dated 7th August, 2015 is reproduced as under:

“Permission to file Special Leave Petition is granted.

Heard learned counsel for the petitioner and perused the relevant material.

Exemption from filing O.T. is granted.

We do not find any legal and valid ground for interference. The Special Leave Petition is dismissed.

Learned counsel for the petitioner(s) has submitted the following orders of this Court (Bench at Jaipur) as well as the Principal Seat of this Hon'ble Court, whereby in the similar matter(s) accused person (s) has/ have been enlarged on bail:

- i) S.B. Cr. Misc. Bail Application No. 6539/2015 (Lili Devi Versus State of Rajasthan); decided on 22.6.2015
- ii) S.B. Cr. Misc. Bail Application No. 6890/2015 (Smt. Dholi Devi @ Dholi Bai Versus State of Rajasthan) decided on 30.6.2015
- iii) S.B. Cr. Misc. Bail Application No. 6167/2015 (Hazari Lal Versus State of Rajasthan); decided on 5.6.2015
- iv) S.B. Cr. Misc. Bail Application No. 4461/2015; (Smt. Saroj Devi Versus The

- State of Rajasthan); decided on 11.5.2015
- v) S.B. Cr. Misc. Bail Application No. 5365/2015; (Banwari Lal Versus State of Rajasthan); decided on 26.5.2015
 - vi) S.B. Cr. Misc. Bail Application No. 5335/2015 (Pooja Versus State of Rajasthan); decided on 25.5.2015
 - vii) S.B. Cr. Misc. Bail Application No. 9515/2015 (Smt. Manju Devi Versus State of Rajasthan); decided on 28.8.2015
 - viii) S.B. Cr. Misc. Bail Application No. 8655/2015 (Nmeena @ Nameena Versus The State of Rajasthan); decided on 21.8.2015
 - ix) S.B. Cr. Misc. Bail Application No. 5653/2015 (Ramavtar Jat Versus The State of Rajasthan); decided on 23.5.2015
 - x) S.B. Cr. Misc. Bail Application No. 5729/2015 (Smt. Bina Versus State of Rajasthan); decided on 3rd June, 2015
 - xi) S.B. Cr. Misc. Bail Application No. 6422/2015 (Bila Devi @ Vimla Versus State of Rajasthan); decided on 18.6.2015
 - xii) S.B. Cr. Misc. Bail Application No. 5727/2015 (Smt. Asha Devi Versus State of Rajasthan); decided on 5.6.2015
 - xiii) S.B. Cr. Misc. Bail Application No. 4020/2015 (Smt. Umi Devi Versus State of Rajasthan); decided on 25.5.2015
 - xiv) S.B. Cr. Misc. Bail Application No. 6349/2015 (Pappu Ram Versus The State of Rajasthan); decided on 16.6.2015
 - xv) S.B. Cr. Misc. Bail Application No. 7645/2015 (Jasoda & Anr. Versus State of Rajasthan); decided on 30.7.2015
 - xvi) S.B. Cr. Misc. Bail Application No. 6416/2015 (mt. Sumitra Gurjar Versus State of Rajasthan); decided on 18.6.2015
 - xvii) S.B. Cr. Misc. Bail Application No. 2733/2015 (Mannu Versus State of Rajasthan); decided on 19.5.2015
 - xviii) S.B. Cr. Misc. Bail Application No.

4091/2015 (Smt. Sangeeta Versus State of Rajasthan); decided on 25.5.2015

xix) S.B. Cr. Misc. Bail Application No. 3834/2015 (Smt. Mamta Devi Versus State of Rajasthan); decided on 21.5.2015

Not only above, the learned counsel has pointed out that Sessions Judge, Bundi has also allowed the bail application of the accused person(s) in the similar matter vide order dated 23.7.2015 passed in Cr. Misc. Bail Application No. 534/2015.

Learned counsel for the petitioner(s) has also cited a judgment of the Larger Bench of this Court in the case of Sameera Bano (Smt.) & Ors. Versus State of Rajasthan; reported in 2007 (2) DNJ (Raj.) (F.B.) 858 in which it was held that disqualification cannot be adjudicated by competent authority under Section 39(2) of the Rajasthan Panchayati Raj Act, 1994 read with Rule 23 of the Rajasthan Panchayati Raj Rules, 1996; and contended that this is the bail application. Learned counsel has further contended that in some of the cases, the election petition was preferred and which is pending for adjudication before the competent court, in which the Coordinate Bench of this Court has stayed the adverse order passed against the Sarpanch. He has further contended that it is the matter which arose due to political vengeance and it will take long time to conclude. In this view of the matter, learned counsel has requested that in the light of the afore-cited cases where the Coordinate Bench of this Court (Bench at Jaipur) as well as the Principal Seat of this Court and even the Sessions Judge have enlarged the accused person (s) on anticipatory bail, on the ground of parity, this

Court should also pass an order allowing the bail application filed by the petitioner(s) under Section 438 CrPC and he/she/they should also be released on bail. Learned counsel undertakes that if the petitioner(s) is/are released on bail, then he/she/they will submit the relevant documents, which were filed by him/her/them at the time of filing the nomination paper, or any other documents, as required by the IO/SO, to the IO/SO concerned, within a period of 15 days from today.

On the other hand, learned PP appearing for the State have opposed the same.

I have heard learned counsel for the parties and carefully perused the relevant material on record.

It is a fact that in some of the case(s), the Coordinate Bench allowed the bail application filed by the accused person(s) under Section 438 CrPC and when the complainant party approached the Hon'ble Apex Court by way of filing SLP, their SLP was dismissed by the Hon'ble Apex Court. Meaning thereby, the order passed by the High Court under Section 438 CrPC was affirmed. It is also a fact in some of the cases, after depositing the relevant documents by the accused person(s) with the Investigating Officer, the Coordinate Bench of this Court granted the anticipatory bail.

Looking to the facts and circumstances of the case, but without expressing any opinion on the merits and demerits of the case, I deem it just and proper to pass the following order:

“This bail application filed under Section 438 CrPC is allowed and it is directed that in the event of arrest of petitioner Mangilal S/o Moolchand, in connection with aforesaid FIR, he

shall be released on bail by the concerned SHO/Investigating Officer, provided he/she/they furnish(es) a personal bond in the sum of Rs. 5,00,000/- (Rs. Five Lakh), with two sureties of Rs. 2,50,000/ (Rs. Two Lakh Fifty Thousand) to his/her satisfaction on the following conditions:

- i) That the petitioner(s) will submit the relevant documents, which were submitted by him/her/them at the time of filing the nomination papers, or any other document(s), as required by the IO/SO, with the IO/SO concerned within a period of 15 days from today.
- ii) If the petitioner(s) do/does not deposit the aforesaid documents within the stipulated time period, as mentioned above, then the IO/SO concerned will be free to move a cancellation of bail application of the petitioner(s) in accordance with law.
- iii) That the petitioner(s) shall make himself/herself/themselves available for interrogation by a police officer, as and when required;
- iv) That the petitioner(s) shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case, so as to dissuade him from disclosing such facts to the court or to any police officer;
- v) That the petitioner(s) shall not leave India without previous permission of the court;
- vi) That the petitioner(s) shall not commit any offence similar to the offence of which he/she/they is/are accused or suspected."

(MAHESH CHANDRA SHARMA), J.

All corrections made in the judgment / order have been incorporated in the judgment / order being E-mailed.

Dilip Khandelwal
PA